

THE REPAIR ZONE – RENTAL TERMS AND CONDITIONS

BY RENTING TOOLS FROM “THE REPAIR ZONE,” YOU AGREE TO THE FOLLOWING TERMS AND CONDITIONS.

- In these terms, ‘The Repair Zone’ refers to the collective of volunteers who provide services under the name ‘The Repair Zone’.
- The Repair Zone is an unincorporated, informal association of individuals and is not a separate legal entity. References to 'The Repair Zone' include its individual members acting in their capacity as volunteers.
- If any provision of these Terms is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- These Terms are governed by the laws of California. Any disputes shall be first subject to mediation, then through arbitration in San Mateo County, California.
- Questions about these terms may be directed to Nathan Wortman or Evan Brand.

LIMITATION OF LIABILITY - To the fullest extent permitted by law, neither The Repair Zone nor its individual members shall be liable for any direct, indirect, incidental, or consequential damages arising from or related to their services. The Repair Zone and its members shall not be liable for any injuries, property damage, or consequential losses arising from tool use, except where caused by gross negligence or willful misconduct of The Repair Zone's volunteers.

Borrower assumes all risks associated with the use of loaned tools.

Tools are loaned 'as-is' without warranty of any kind.

INDEMNIFICATION - Recipients agree to indemnify and hold harmless The Repair Zone and its members from any claims, damages, or expenses arising from the Recipient's use of tools, including claims from third parties injured by such items or tools.

RELEASE & WAIVER - By accepting services you hereby release and waive any claims against The Repair Zone, its members, sponsors and contractors arising from rental services. This release includes claims of negligence, except those involving gross negligence or willful misconduct.

USE & SAFETY REQUIREMENTS

Authorized Use Only

Tools are loaned exclusively for repair activities related to the Open Sauce event. Tools may not be used for commercial purposes, altered, or lent to third parties without express written permission.

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Safety Compliance

Borrower acknowledges that some tools involve inherent risks including but not limited to electrical shock, heat, pressure, or moving parts. Borrower agrees to:

- Follow all safety instructions provided by The Repair Zone
- Wear appropriate personal protective equipment (PPE)
- Stop use immediately if a tool malfunctions or behaves unexpectedly

Training Requirement

Certain tools require demonstration and authorization before use. Borrower confirms they have received necessary instruction or will seek supervision from qualified members. If borrower has not received instruction, they certify that they have been previously trained for safe use of tools borrowed.

Proper Care

Borrower agrees to store, transport, and use tools with reasonable care. Tools must be kept dry, protected from damage, and returned clean and in working condition.

Return Deadline

Tools MUST be returned by end of day unless permission is received from either Nathan Wortman or Evan Brand. Late returns may result in the borrower being prevent from additional rentals and making us sad.

DAMAGES & LOSSES

Normal Wear and Tear

Borrower is not liable for normal wear and tear incurred through proper use.

Negligence or Misuse

If a tool is lost, stolen, damaged due to misuse, or returned non-functional, the borrower agrees to:

- Report the incident immediately to The Repair Zone
- Cover repair costs or replacement at fair market value
- Notify The Repair Zone of any injuries resulting from tool use

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